



Republic of the Philippines
Province of Sorsogon
MUNICIPALITY OF PRIETO DIAZ
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Office of the Sangguniang Bayan

EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE 11TH SANGGUNIANG BAYAN OF PRIETO DIAZ, SORSOGON HELD ON JANUARY 7, 2025 AT ITS SESSION HALL

PRESENT:

Hon. Avon D. Domalaon, MPA	Municipal Vice Mayor/Presiding Officer
Hon. Jo Madel D. Domalaon	S. B. Member
Hon. Bienvenido D. Ayo, Jr.	-do-
Hon. Luis Lee E. Espeña, Jr.	-do-
Hon. Alice D. Emano	-do-
Hon. Rodolfo E. Diolata	-do-
Hon. Juan D. Ebid	-do-
Hon. Albert D. Destura	-do-
Hon. Antonio J. Emano, Jr.	LnB Pres. /S. B. Member
Hon. Rene Joseph D. Domasian	PPSK Pres./S.B. Member

ABSENT:

Hon. Joseph H. Yap, Jr.	S. B. Member/ on leave
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RESOLUTION NO. 02-2025

Introduced by Hon. Alice Emano

A RESOLUTION AUTHORIZING THE MUNICIPAL MAYOR, HON. ROMEO D. DOMASIAN TO ENTER INTO A MEMORANDUM OF AGREEMENT WITH BICOL UNIVERSITY, LEGAZPI CITY, REPRESENTED BY ITS PRESIDENT, DR. BABY BOY BENJAMIN D. NEBRES III, FOR THE FIELD OBSERVATION AND FIELD INSTRUCTION (OR ON-THE-JOB TRAINING) OF THE B.U. STUDENTS AT THE OFFICE OF THE MUNICIPAL SOCIAL WELFARE AND DEVELOPMENT OFFICER (OMSWDO) IN THE LOCAL GOVERNMENT UNIT OF PRIETO DIAZ, SORSOGON

WHEREAS, Bicol University is a premiere state university mandated by law to provide advanced and specialized instruction in literature, philosophy and the sciences arts;

WHEREAS, pursuant to the said mandate, BU has integrated in the curricula of all courses it offers, field instructions and on-the-job trainings, so as to afford its students the opportunity to learn more through the actual work experience;

WHEREAS, the LGU of Prieto Diaz and BU Legazpi City both agree to engage in activities related to instructions, research and extension projects;

WHEREAS, the LGU is willing to accommodate the ten (10) students in its offices, in the Office of the Municipal Social Welfare and Development Officer (OMSWDO)

particularly, where they can undergo their Field Observation and Field Instruction (On-the-Job Training);

WHEREAS, the LGU shall provide the BU students with practical training on the job and if possible, supplement the same with related theoretical instruments based on the agreed program;

WHEREAS, BU students shall abide by the rules and regulations of the LGU and shall comply with those imposed under the program, otherwise, they shall be excluded from further participation in the FI program;

WHEREAS, during the FI program and only during office hours, the students shall be under the administrative authority of the LGU;

WHEREAS, BU students shall not be considered as employees of the LGU and shall not be entitled to any wages or employees benefits given to the employees except when the LGU deems it necessary to provide stipend and other benefits;

WHEREAS, the FI program shall run for a period of 15 working days, for a period of 100 hours, but maybe extended until the completion of the required training hours and requirements;

WHEREAS, on motion of Hon. Antonio Emano, Jr., duly seconded by Hon. Juan Ebid, duly seconded by Hon. Luis Lee Espeña, Jr. and Hon. Rodolfo Diolata;

NOW, THEREFORE, be it as it is;

HEREBY RESOLVED, to authorize the Municipal Mayor, Hon. Romeo D. Domasian, to enter into a Memorandum of Agreement with Bicol University (BU), Legazpi City, represented by its President, Dr. Baby Boy Benjamin D. Nebres III, for the field observation and field instruction (or On-The-Job Training) of the B.U. students at the Office Of The Municipal Social Welfare and Development Officer (MSWDO) in the Local Government Unit Of Prieto Diaz, Sorsogon;

FINALLY RESOLVED, to transmit this resolution to Hon. Romeo Domasian, Municipal Mayor; copy furnished Ms. Betty G. Arines, MSWDO; and all concerned for their information and appropriate action;

APPROVED UNANIMOUSLY.

I HEREBY CERTIFY TO THE CORRECTNESS OF THE FOREGOING.


BERNADETTE R. ESPEÑA-YAO
Secretary to the Sangguniang Bayan

ATTESTED:


Hon. AVON D. DOMALAON, MPA
Municipal Vice Mayor/Presiding Officer

MEMORANDUM OF AGREEMENT

KNOW ALL MEN BY THESE PRESENTS:

This **MEMORANDUM OF AGREEMENT** made and executed this _____ day of _____ in Legazpi City and between:

BICOL UNIVERSITY, an educational institution created by virtue of Republic Act 5521, as amended, with principal office address at Legazpi City, herein represented by its President, **Dr. BABY BOY BENJAMIN D. NEBRES III**, and herein referred to as the **FIRST PARTY**.

-and-

The **MUNICIPAL SOCIAL WELFARE AND DEVELOPMENT OFFICE** with office address at Prieto Diaz, Sorsogon herein represented by its Municipal Mayor, **HON. ROMEO D. DOMASIAN, Ph.D.** and herein referred to as the **SECOND PARTY**;

WITNESSETH that:

WHEREAS, the **FIRST PARTY** is a premier State University mandated by law which created it to provide advanced and specialized instruction in literature, philosophy and the sciences and arts;

WHEREAS, the **FIRST PARTY** aside from specialized instruction, is also mandated by RA 5521 and its existing government policies for State Universities and Colleges to conduct activities related to research, development and extension;

WHEREAS, the **FIRST PARTY** possesses the qualifications, scientific and technological capability and sense of responsibility deemed necessary for the implementation of various instruction, research development and extension undertakings;

WHEREAS, pursuant to the above-said mandate, the **FIRST PARTY** has integrated in the curricula of all courses it offers, field instructions and on-the-job trainings, so as to afford them the opportunity to learn more through actual work experience;

WHEREAS, the **SECOND PARTY** is of the same view and has no second thoughts in allowing students of different schools in the country to have their field instructions and on-the-job trainings within its offices;

WHEREAS, instruction-related activities may refer to Field Observation and Field Instruction (or On-the-Job Training) among others, research development activities may refer to the conduct of mini-studies and research projects; and extension capability building activities to be primarily performed by the **FIRST PARTY** through a partnership with the **SECOND PARTY**;

WHEREAS, by undertaking this Agreement, the **SECOND PARTY** explicitly states its willingness to accommodate the faculty members and students of the **FIRST PARTY** in the conduct of the instruction, research development and extension initiatives and activities;

NOW THEREFORE, for and in consideration of the foregoing premises, the **FIRST PARTY** and the **SECOND PARTY** hereby execute this Memorandum of Agreement, subject to the following terms and conditions:

I. OBLIGATIONS OF THE PARTIES ON INSTRUCTION-RELATED ACTIVITIES (FIELD OBSERVATION AND FIELD INSTRUCTION PROGRAM)

A. OBLIGATIONS OF THE FIRST PARTY

1. Shall be the duty of the **FIRST PARTY** to draw a list of qualified students whom it shall assign to the **SECOND PARTY** under this FO/FI Program. The list must contain the names of the students, their respective addresses, and the names of the persons which the **SECOND PARTY** shall contact in case of emergency. Other personal circumstances may be included in the list by the **FIRST PARTY**, at their option.

2. Thereafter, the **FIRST PARTY** shall provide the **SECOND PARTY** a copy of the said list.

3. The **FIRST PARTY** shall conduct necessary orientation of the students on the fundamentals of the training, their actual participation and all matters related to work;

4. The **FIRST PARTY** shall designate a school supervisor who will coordinate with the **SECOND PARTY** regarding the various activities/requirements under the FO/FI program;

5. The **FIRST PARTY** shall require parental consent as part of the students' requirements before being placed for FO and FI.

6. The **FIRST PARTY** shall pay the Agency Supervisor to be designated by the **SECOND PARTY** an incentive per student per semester. The said amount shall be taken from the Field Instruction fee of the student.

B. OBLIGATIONS OF THE SECOND PARTY

1. The **SECOND PARTY** shall provide the students of the **FIRST PARTY** with practical training on the job and if possible supplement the same with the related theoretical instruments based on the agreed program;

2. The **SECOND PARTY** shall provide the students of the **FIRST PARTY** ample protection from any form of harassment, discrimination, exploitation or unjust labor practice while in its agency placement;

3. The **SECOND PARTY** shall immediately report to the **FIRST PARTY** any complaint or problem regarding the student's performance, in both practicum and theoretical aspects of training;

4. The **SECOND PARTY** shall designate an Agency Supervisor to perform the following tasks:

- a. Assign appropriate work load based on the student's learning goals;
- b. Teach additional theories and concepts based on the student's course outline, when the need there of arises;
- c. Support and sustain a positive learning atmosphere for the students;

- d. Allocate time for supervisory conferences;
- e. Monitor student's performance; and
- f. Attend field observation/instruction related activities;

C. OTHER TERMS AND CONDITIONS

a. The Field Observation and Field Instruction during any emergency health crisis shall be implemented remotely/online to secure the health and protection of all parties involved. Supervision, tasks assignment and FO/FI activities and undertakings shall be conducted using the accessible and available communication, media and online technologies. Both the assigned supervisors of **FIRST PARTY** and **SECOND PARTY** shall conduct the supervision and learning undertakings through various social media/digital learning platforms.

b. Any student of the **FIRST PARTY** enrolled in this FO/FI Program reserves the right to refuse the performance of a task without fear of reprisal when he/she reasonably believes that the task is likely to endanger him/her or any person, such as corruption, bribery and other unethical practices;

c. The students of the **FIRST PARTY** shall abide by the rules and/or regulations of the **SECOND PARTY** and shall comply with those imposed under the program. Otherwise, they shall be excluded from further participation in the FO/FI program;

d. The students of the **FIRST PARTY** shall exercise ordinary diligence in the performance of any task assigned to them;

e. The **FIRST PARTY** agree that Data Privacy Act of 2012 shall be considered read into this Agreement and that the same principles of transparency, legitimate purpose and proportionality shall govern the implementation of this agreement. Furthermore, it shall advise its students to exercise utmost confidentiality in the performance of their job. They shall not disclose to any third person any information which they may acquire from their training with the **SECOND PARTY**. Otherwise, the **SECOND PARTY** shall hold the **FIRST PARTY** liable for damages.

f. During the entire FO/FI program and only during office hours, the students of the **FIRST PARTY** shall be under the administrative authority of the **SECOND PARTY**;

g. In case of accident or injury to the students during the FO/FI program, neither the **FIRST PARTY** nor the **SECOND PARTY** shall be held liable; if the cause of the said accident or injury is attributable to the student's negligence;

h. Students of the **FIRST PARTY** shall not be considered as employees of the **SECOND PARTY** and shall not be entitled to any wages or employees benefits given to the employees of the **SECOND PARTY** except when the latter deems it necessary to provide stipend and other benefits;

i. The FO program shall run for a period 15 working days, for a minimum of 100 hours. However, it may extended until the completion of the required training hours and requirements upon the request of the **FIRST PARTY** and the approval of the **SECOND PARTY**;

j. The FI program shall continue to run for a period of 500 hours per semester (5 months) from Monday until Friday and maybe extended until Saturdays and Holidays if requested by the **SECOND PARTY**. Field placement maybe extended until the completion of the required training hours and requirements.

k. The **FIRST PARTY** and **SECOND PARTY** agree to collaborate to attend orientation, trainings, briefing sessions and capability – building activities and may act as Resource Persons as deemed necessary.

III. SEPARABILITY CLAUSE AND AMENDMENTS

A. In case any provision hereof or any part thereof be declared void or unenforceable by competent authorities, the remainder unaffected by such declaration shall remain valid and binding among the parties, their successors and assigns.

B. Amendments and Revisions of this Agreement must be made in writing should be submitted at least thirty (30) days prior to its effectivity and must be approved by both parties so that the same may be valid and binding.

IV. EFFECTIVITY OF THE CONTRACT:

This agreement shall take effect upon the signing of the parties and shall remain binding for five (5) years and renewable upon mutual agreement of the parties or as soon as terminated earlier by either party for justifiable reasons.

IN WITNESS WHEREOF, the parties have hereunto set their hands this _____ at Legazpi City, Philippines.

BICOL UNIVERSITY
First Party

Represented by:

BABY BOY BENJAMIN D. NEBRES III, PhD
SUC President IV

Signed in the presence of:

**MUNICIPAL SOCIAL WELFARE AND
DEVELOPMENT OFFICE – PRIETO DIAZ,
SORSOGON**

Second Party

Represented by:

HON. ROMEO D. DOMASIAN, Ph.D.
Municipal Mayor

-----Witnesses-----

MARICEL V. ABRIGO, MSSW
Chairperson, BUTC Social Work Department

RONESA TERELLE MAIE D. ESTERNON, RSW, MAED-GC
Social Welfare Officer I &
iCARE Hub WCPU Coordinator